event of a dispute or discrepancy.
RESOLUTION MEPC.328(76)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1997 TO AMEND THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO- 16 -

Regulation 9
Duration and validity of Certificates and Statements of Compliance related to fuel oil consumption reporting and operational carbon intensity rating

International Air Pollution Prevention Certificate

1 An IAPP Certificate shall be issued for a period specified by the Administration, which shall not exceed five years.

2 Notwithstanding the requirements of paragraph 1 of this regulation:

.1 when the renewal survey is completed within three months before the expiry date of the existing certificate, the new certificate shall be valid from the date of completion of the renewal survey to a date not exceeding five years from the date of expiry of the existing certificate;

---CHUNK---

SOURCE: MEPC.328(76).pdf
date of the existing certificate, the new certificate shall be valid from the date of completion of the renewal survey to a date not exceeding five years from the date of expiry of the existing certificate;

.2 when the renewal survey is completed after the expiry date of the existing certificate, the new certificate shall be valid from the date of completion of the renewal survey to a date not exceeding five years from the date of expiry of the existing certificate; and

.3 when the renewal survey is completed more than three months before the expiry date of the existing certificate, the new certificate shall be valid from the date of completion of the renewal survey to a date not exceeding five years from the date of completion of the renewal survey.

3 If a certificate is issued for a period of less than five years, the Administration may extend the validity of the certificate beyond the expiry date to the maximum period specified in paragraph 1 of this regulation, provided that the surveys referred to in regulations 5.1.3 and 5.1.4 of this Annex applicable when a certificate is issued for a period of five years are carried out as appropriate.

---CHUNK---

SOURCE: MEPC.328(76).pdf
paragraph 1 of this regulation, provided that the surveys referred to in regulations 5.1.3 and 5.1.4 of this Annex applicable when a certificate is issued for a period of five years are carried out as appropriate.

4 If a renewal survey has been completed and a new certificate cannot be issued or placed on board the ship before the expiry date of the existing certificate, the person or

organization authorized by the Administration may endorse the existing certificate and such a certificate shall be accepted as valid for a further period that shall not exceed five months from the expiry date.

5 If a ship, at the time when a certificate expires, is not in a port in which it is to be surveyed, the Administration may extend the period of validity of the certificate, but this extension shall be granted only for the purpose of allowing the ship to complete its voyage to the port in which it is to be surveyed, and then only in cases where it appears proper and reasonable to do so. No certificate shall be extended for a period longer than three months, and a ship to which an extension is granted shall not, on its arrival in the port in which it is to

---CHUNK---

SOURCE: MEPC.328(76).pdf
reasonable to do so. No certificate shall be extended for a period longer than three months, and a ship to which an extension is granted shall not, on its arrival in the port in which it is to be surveyed, be entitled by virtue of such extension to leave that port without having a new certificate. When the renewal survey is completed, the new certificate shall be valid to a date not exceeding five years from the date of expiry of the existing certificate before the extension was granted.

6 A certificate issued to a ship engaged on short voyages that has not been extended under the foregoing provisions of this regulation may be extended by the Administration for a period of grace of up to one month from the date of expiry stated on it. When the renewal survey is completed, the new certificate shall be valid to a date not exceeding five years from the date of expiry of the existing certificate before the extension was granted.

RESOLUTION MEPC.328(76)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1997 TO AMEND THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO- 17 -

---CHUNK---

SOURCE: MEPC.328(76).pdf
RESOLUTION MEPC.328(76)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1997 TO AMEND THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO- 17 -

7 In special circumstances, as determined by the Administration, a new certificate need not be dated from the date of expiry of the existing certificate as required by paragraph 2.1, 5 or 6 of this regulation. In these special circumstances, the new certificate shall be valid to a date not exceeding five years from the date of completion of the renewal survey.

8 If an annual or intermediate survey is completed before the period specified in regulation 5 of this Annex, then:

.1 the anniversary date shown on the certificate shall be amended by endorsement to a date that shall not be more than three months later than the date on which the survey was completed;

.2 the subsequent annual or intermediate survey required by regulation 5 of this Annex shall be completed at the intervals prescribed by that regulation using

the new anniversary date; and

.3 the expiry date may remain unchanged, provided one or more annual or

---CHUNK---

SOURCE: MEPC.328(76).pdf
Annex shall be completed at the intervals prescribed by that regulation using
the new anniversary date; and

.3 the expiry date may remain unchanged, provided one or more annual or
intermediate surveys, as appropriate, are carried out so that the maximum
intervals between the surveys prescribed by regulation 5 of this Annex are
not exceeded.

9 A certificate issued under regulation 6 or 7 of this Annex shall cease to be valid in any
of the following cases:

.1 if the relevant surveys are not completed within the periods specified under
regulation 5.1 of this Annex;

.2 if the certificate is not endorsed in accordance with regulation 5.1.3 or 5.1.4
of this Annex; and

.3 upon transfer of the ship to the flag of another State. A new certificate shall
only be issued when the Government issuing the new certificate is fully
satisfied that the ship is in compliance with the requirements of regulation 5.4
of this Annex. In the case of a transfer between Parties, if requested within
three months after the transfer has taken place, the Government of the Party
whose flag the ship was formerly entitled to fly shall, as soon as possible,

---CHUNK---

SOURCE: MEPC.328(76).pdf
of this Annex. In the case of a transfer between Parties, if requested within
three months after the transfer has taken place, the Government of the Party
whose flag the ship was formerly entitled to fly shall, as soon as possible,
transmit to the Administration copies of the certificate carried by the ship
before the transfer and, if available, copies of the relevant survey reports.

International Energy Efficiency Certificate

10 The International Energy Efficiency Certificate shall be valid throughout the life of the
ship subject to the provisions of paragraph 11 below.

11 An International Energy Efficiency Certificate issued under this Annex shall cease to
be valid in any of the following cases:

.1 if the ship is withdrawn from service or if a new certificate is issued following
major conversion of the ship; or

.2 upon transfer of the ship to the flag of another State. A new certificate shall
only be issued when the Government issuing the new certificate is fully
satisfied that the ship is in compliance with the requirements of chapter 4 of

this Annex. In the case of a transfer between Parties, if requested within three

---CHUNK---

SOURCE: MEPC.328(76).pdf
only be issued when the Government issuing the new certificate is fully satisfied that the ship is in compliance with the requirements of chapter 4 of this Annex. In the case of a transfer between Parties, if requested within three months after the transfer has taken place, the Government of the Party

whose flag the ship was formerly entitled to fly shall, as soon as possible, transmit to the Administration copies of the certificate carried by the ship before the transfer and, if available, copies of the relevant survey reports; or

.3 if the ship's equipment, systems, fittings, arrangements, or material covered by the survey were changed without the express approval of the Administration, as provided for in regulation 5.5 of this Annex, unless regulation 3 of this Annex applies.